



CHAPTER xliv.

An Act to authorise the mayor aldermen and burgesses of the borough of Poole to acquire the undertaking of the Poole Bridge Company and to make provision with regard to lands in the borough adjacent to the foreshore with regard to the health local government and improvement of the borough the establishment of a fund for the granting of superannuation allowances to officers and servants and for other purposes.

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[15th August 1919.]

WHEREAS by the Act 4 William IV. cap. xlvi. the company thereby incorporated (in this Act referred to as "the bridge company") were empowered to build erect construct and maintain a bridge with a draw or swivel bridge over the water from the north-west end of the public quay in the parish of Saint James in the town and county of the town of Poole to the opposite side thereof in the parish of Hamworthy in the county of Dorset (both of which parishes are now in the borough of Poole) with an approach thereto from the south-west side of the said bridge in the said parish of Hamworthy to and into the turnpike road leading from Wareham to Hamworthy and Poole aforesaid and the bridge company were empowered to demand and take the tolls and charges in the said Act mentioned:

And whereas the said bridge and works were duly constructed:

And whereas it is expedient that the undertaking of the bridge company should be transferred to and vested in the Corporation in manner provided by this Act:

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And whereas it is expedient to authorise the Corporation to purchase by agreement certain parts of the foreshore and lands adjacent thereto within the borough and to confer on the Corporation further powers with regard to the regulation improvement and development of such parts of the foreshore and lands as by this Act provided:

And whereas it is expedient that better provision should be made with reference to streets buildings sewers and drains within the borough and that the powers of the Corporation in relation to the health local government and improvement of the borough should be enlarged as by this Act provided:

And whereas it is expedient to empower the Corporation to establish a fund for the granting of superannuation and other allowances to officers and servants of the Corporation:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Poole Corporation Act 1919.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Purchase Maintenance and Management by Corporation of Bridge Undertaking.

Part III.—Improvement Provisions.

Part IV.—Streets Buildings Sewers and Drains. A.D. 1919.

Part V.—Infectious Disease and Sanitary Matters.

Part VI.—Police Provisions.

Part VII.—Superannuation.

Part VIII.—Financial and Miscellaneous.

3. The Lands Clauses Acts (except the provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement and except section 127 of the said Act) shall be incorporated with and form part of this Act. Incorporation of Acts.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires:— Interpretation.

“The Corporation” means the mayor aldermen and burgesses of the borough of Poole;

“The borough” means the borough of Poole;

“The council” means the council of the borough;

“The mayor” “the town clerk” “the surveyor” “the medical officer” and “the inspector of nuisances” mean respectively the mayor the town clerk the surveyor the medical officer of health and any inspector of nuisances of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“The bridge company” means the company incorporated by the Act 4 William IV. cap. xlvi. and known as the Poole Bridge Company;

“The undertaking of the bridge company” includes the bridge and works constructed under the authority of the Act of 1834 (and known as and in this Act called “the Poole Bridge”) together with the approaches

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and any lands acquired by the bridge company and the toll-houses conveniences and appurtenances to the said bridge belonging or therewith used or enjoyed and all rights of charging tolls under and all other the undertaking authorised by the Act of 1834;

“The appointed day” means the twenty-fourth day of March or the twenty-eighth day of September whichever shall first happen after the expiration of two months after the amount of the purchase money to be paid by the Corporation to the bridge company has been determined either by agreement or by arbitration in pursuance of the section of this Act whereof the marginal note is “Bridge company to sell their undertaking to Corporation” or such other day as may be agreed between the bridge company and the Corporation;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any provisional order confirmed by Act of Parliament passed or to be passed or under any order

or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1919.

“The Act of 1834” means the Act 4 William IV. cap. xlvi. and “the Act of 1906” means the Poole Corporation Water Act 1906.

PART II.

PURCHASE MAINTENANCE AND MANAGEMENT BY CORPORATION OF BRIDGE UNDERTAKING.

5.—(1) If within twelve months after the passing of this Act the Corporation give to the bridge company notice in writing of their intention to purchase the undertaking of the bridge company that company shall sell to the Corporation and the Corporation shall purchase the undertaking of the bridge company for such price or consideration being a sum in gross and on such terms and conditions as may be agreed on between the bridge company and the Corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Arbitration Act 1889. Bridge company to sell their undertaking to Corporation.

(2) Provided that if the bridge company and the Corporation so agree any sum payable by the Corporation to the bridge company in pursuance of this Act may be discharged wholly or partly by the issue by the Corporation to the bridge company or to such persons as the bridge company may nominate of stock created under the Public Health Acts Amendment Act 1890 or of mortgages or other securities which the Corporation are by this Act authorised to grant or issue for the purpose of raising the sums payable by the Corporation to the bridge company.

(3) The Corporation shall pay the purchase money to the bridge company on the appointed day and upon such payment the undertaking of the bridge company with their rights powers and privileges shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Corporation free from all charges debts and liabilities upon or affecting the same and such transfer and vesting are in this Act referred to as “the transfer”:

Provided that if the sanction of the Treasury shall be required for the raising by the Corporation of a loan for the

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(4) The production of a King's Printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three members of the committee of management of the bridge company or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Corporation of the undertaking of the bridge company.

Receipt for
purchase
money.

6.—(1) The receipt in writing of three members of the committee of management of the bridge company for any money paid to them by the Corporation shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof.

(2) Provided that if from any cause the Corporation are unable to obtain such receipt from the bridge company they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Corporation by the cashier of the said bank for the money which shall have the same effect as the receipt of three members of the committee of management of the bridge company.

Company to
be entitled
to receipts
and to pay

7.—(1) The bridge company shall be entitled to all receipts and sums of money accrued due in respect of their undertaking up to and including the appointed day and shall discharge all

liabilities and outgoings up to and including that day (including liabilities in respect of causes of action then existing). A.D. 1919.

(2) As from the appointed day all liabilities and outgoings incurred after that day shall be borne and paid by the Corporation who shall be entitled as from that day to all receipts and sums of money in respect of the said undertaking and so far as may be necessary such liabilities outgoings receipts and sums of money shall be apportioned between the bridge company and the Corporation up to the appointed day.

outgoings
until trans-
fer.

8. After service of the notice referred to in the section of this Act whereof the marginal note is "Bridge company to sell their undertaking to Corporation" until the appointed day the bridge company shall maintain and carry on their undertaking as heretofore in the ordinary course of business but the bridge company shall not without the previous consent of the Corporation under the hand of the town clerk make or enter into any new contract agreement liability or other obligation in respect of their undertaking which shall extend beyond the appointed day.

Exercise of
company's
powers until
transfer.

9. All charges debts and liabilities upon or affecting the undertaking or due from or payable by the bridge company which at the appointed day shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the bridge company and if at the appointed day any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the bridge company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the bridge company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not been passed.

Liabilities to
be defrayed
by bridge
company.

10. Subject to the provisions of this Act all agreements conveyances contracts deeds and other instruments entered into or made with or by the bridge company and in force at the appointed day shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the bridge company the Corporation had been a party thereto.

Contracts
with bridge
company to
be binding
on Corpora-
tion.

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Books &c.
to remain
evidence.

11. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the bridge company shall be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Winding up
of bridge
company.

12.—(1) From and after the date of the transfer the bridge company shall subsist only for the purpose of discharging paying and satisfying the charges debts and liabilities upon or affecting the undertaking of the bridge company or due from or payable by the bridge company and of receiving and recovering the sums payable to that company as provided by this Act and distributing the same and the purchase money and any other moneys payable to the bridge company in accordance with the provisions of this Act and for winding up the affairs of the bridge company and carrying into effect the purposes of this Act so far as they relate to the bridge company and the members of the committee of management of the bridge company who are in office at the date of the transfer and the survivors or survivor of them shall continue without re-election to hold the office of members of the committee of management of the bridge company and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

(2) If the number of members of the committee of management of the bridge company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing members shall from time to time choose a shareholder or shareholders of the bridge company to fill the vacancy or vacancies so caused.

(3) Forthwith after the date of the transfer the committee of management of the bridge company shall proceed to wind up the affairs of that company and after discharging paying and satisfying the charges debts and liabilities upon or affecting the undertaking or due from or payable by the bridge company shall pay and distribute their net moneys to and among the several persons who at the date of the transfer are the registered holders of stock or shares in the capital of the bridge company or their respective executors administrators and assigns according to the amount of the stock or shares held by them respectively and for the purpose of such distribution the several persons whose names shall appear in the books of the bridge company

at the date of the transfer to be the proprietors of stock or shares therein shall unless the contrary be proved to the satisfaction of the committee of management be considered to be stockholders or shareholders of the bridge company and the receipt in writing of such persons or of their executors or administrators or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the bridge company and the members of the committee of management thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the stock shares or interest in respect whereof that money is paid. A.D. 1919.

(4) If the committee of management of the bridge company are for six months after the date of the transfer unable after diligent inquiry to ascertain the person to whom any money ought to be paid or who can give an effectual receipt for the same they may pay the same into the High Court or if not exceeding five hundred pounds into the county court of Dorset holden at Poole under any Act for the time being in force for the relief of trustees and every such payment shall effectually discharge the bridge company and the members of the committee of management thereof from all further liability with respect to the money so paid in.

13. As from the appointed day the provisions of the Act of 1834 which are set out in the First Schedule to this Act shall extend and apply to the Corporation and shall be read and construed as if the Corporation were mentioned therein instead of the bridge company and the provisions of the said Act other than those set out in the said schedule are hereby repealed. Act of 1834 to apply to Corporation.

14. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Corporation on in over through or across tidal lands or tidal water or of the intended site of any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily. Survey of works by Board of Trade.

15. If a work constructed by the bridge company or the Corporation on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense Abatement of work abandoned or decayed.

A.D. 1919. of the Corporation and the amount of such expense shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

Lights on works during construction.

16. The Corporation shall at or near the works below high-water mark authorised by the Act of 1834 and this Act during the whole time of the reconstructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. If the Corporation fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Permanent lights on works.

17. The Corporation shall at the outer extremity of their works below high-water mark exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House of Deptford Strond shall from time to time direct.

If the Corporation fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Provision against danger to navigation.

18. In case of injury to or destruction or decay of the piers or works or any part thereof the Corporation shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House of Deptford Strond and shall apply to that corporation for directions as to the means to be taken and the Corporation shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any directions given in reference to the means to be taken.

Power to take lands by agreement.

19. The Corporation may in addition to any other lands which they are by this Act authorised to acquire purchase and acquire by agreement such lands as they may require for the purposes of this Part of this Act and may sell or dispose of any such lands as are not or are no longer required for such purposes. Provided that they shall not at any time hold for such purposes more than five acres of land but nothing in this

section shall authorise the Corporation to create or permit the creation or continuance of any nuisance upon any such land. A.D. 1919.

20. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands acquired under and for the purposes of this Part of this Act within six feet of the sides of the Poole Bridge and of the approaches thereto or any interest therein acquired by them or their predecessors under the Act of 1834 or this Act and the Corporation may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to retain sell &c. lands.

Any capital moneys received in respect of any such lands or interest therein shall be applied towards the extinguishment of any loan raised by the Corporation under the powers of this Part of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Local Government Board.

21. The Corporation may erect make and maintain in connexion with the Poole Bridge and for the purposes thereof toll-houses toll-gates buildings and all works and conveniences which may be necessary and proper for the working and user of the Poole Bridge and the accommodation and convenience of passengers animals and vehicles using the same and the Corporation may demand and receive for the use of the Poole Bridge the tolls set out in the Second Schedule to this Act.

Power to maintain toll-houses &c. and to charge tolls in respect of Poole Bridge.

22.—(1) The Corporation may during the subsistence of the tolls enter into and carry into effect agreements with any persons or bodies providing for the charging of such annual or other sums to any person or persons or any class or classes of persons by way of compounding for the tolls.

Composition of tolls.

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(2) In the exercise of the powers conferred by subsection (1) of this section or for the purpose of giving effect to any agreement thereunder the Corporation may issue season tickets at prepaid rates to tradesmen farmers and other persons who or whose tollable vehicles habitually use the Poole Bridge.

(3) All compounding under this section shall be made on the same terms for all persons in like circumstances.

List of tolls to be exhibited near each end of Poole Bridge.

23. A list of the tolls from time to time authorised to be taken shall be published by the same being painted upon a board in distinct letters or by the same being printed in legible characters on paper affixed to such board and such board shall be exhibited at the toll-gates of the Poole Bridge where such tolls shall be payable.

Tolls to be taken only whilst board exhibited.

24. No tolls shall be demanded or taken by the Corporation during any time at which the list of tolls hereinbefore directed to be exhibited shall not be so exhibited and if any person wilfully pull down deface or destroy any such board or list of tolls he shall be liable to a penalty not exceeding five pounds for every such offence.

Tolls to be paid before passing over Poole Bridge.

25. The Corporation may require all tolls to be paid before any person goods animal vehicle or other thing is entitled to pass over the Poole Bridge.

Taking and recovery of tolls.

26. The tolls shall be paid to such persons and at such places upon or near the Poole Bridge and in such manner as the Corporation shall appoint and the Corporation may recover any unpaid tolls in a summary manner as a civil debt or by action in any court of competent jurisdiction.

Penalties on persons practising frauds.

27. If any person shall knowingly and wilfully and with intent to defraud refuse or neglect to pay any toll when the same shall be demanded from him by virtue of this Act he shall for every such offence be liable to a penalty not exceeding forty shillings.

Penalties on toll collectors.

28. Every toll collector who shall commit any of the following offences shall forfeit a sum not exceeding ten pounds for each such offence (that is to say):—

If he refuse to tell his Christian name and surname to any person demanding the same who shall have paid or

tendered the toll demanded of him or if he give a false name to any such person : A.D. 1919.

If he wilfully and with intent to defraud demand or take a greater or less toll from any person than he shall be authorised to do by virtue of this Act and of the orders of the Corporation made in pursuance thereof or shall take no toll.

29. The Corporation may from time to time lessen or reduce all or any of the tolls authorised to be taken in respect of the Poole Bridge for such time as they shall think proper and they may again raise the tolls so reduced or lessened or any part thereof so that the same do not exceed the tolls authorised and the tolls so lessened or reduced or raised again shall be collected and recovered in the same manner as the tolls authorised are to be collected and recovered. Power to vary tolls.

30. Without prejudice to any existing right of His Majesty and save as provided by the Army Act nothing in this Act shall extend to authorise any tolls to be demanded or received from any person when on duty in the service of the Crown or for any animal vehicle or goods the property of or when being used in the service of the Crown or returning after being so used or from any police officer acting in the execution of his duty or for any mail bag as defined by the Post Office Act 1908 If any person wilfully and with intent to defraud claims or takes the benefit of any such exemption as aforesaid without being entitled thereto he shall for every such offence be liable on summary conviction to a fine not exceeding ten pounds. Exemption from tolls in case of persons in service of Crown &c.

31. The Corporation may subject to the provisions of this Act make alter and repeal byelaws for all or any of the purposes following (that is to say) :— Byelaws.

- (a) For regulating controlling and limiting the use of the Poole Bridge :
- (b) For preventing the commission of nuisances in or upon the Poole Bridge or the approaches thereto :
- (c) For preserving the Poole Bridge and works forming part thereof and preventing injuries and damage to the same :
- (d) For regulating the duties and conduct of all persons whether officers and servants of the Corporation or

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not who shall be employed in and about the Poole Bridge :

- (e) For regulating the passage and conveyance of passengers troops animals vehicles or goods across the Poole Bridge and providing for the issue of tickets as receipt for tolls paid to a toll collector and the giving of the same up on request to any toll collector and against the transfer of season or other tickets issued and using the same again :
- (f) For regulating and controlling or preventing if thought fit the fastening or mooring of vessels or boats of every description to the Poole Bridge and other works :
- (g) For preventing persons with horses or carriages or other vehicles or otherwise negligently or wilfully obstructing the approaches to the Poole Bridge or doing anything to hinder or interfere with the proper working of the same :
- (h) For the preservation of order among the passengers and persons using the Poole Bridge.

And the Corporation may by the byelaws so to be made by them impose such reasonable penalties as they think fit not exceeding five pounds for each breach of such byelaws Provided that no such byelaws except such as relate solely to the officers or servants of the Corporation and do not impose penalties for the breach thereof shall come into operation until the same shall have been confirmed by the Board of Trade.

Notice of application to Board of Trade for confirmation of byelaws to be given.

32. Notice of the application to the Board of Trade for the confirmation of any byelaws with respect to the Poole Bridge shall be given in one or more newspapers published or circulating in the borough naming a place or places within the borough where a copy of the proposed byelaws may be seen at all reasonable times and any person desiring to object to any byelaws so submitted for approval or confirmation shall give notice in writing to the Board of Trade and to the Corporation stating the nature of his objections within twenty-one days after the first publication of the notice as hereinbefore provided and the Board of Trade may if they think fit hold such inquiry locally or otherwise in reference to such application as they see fit and the expenses

of the Board of Trade in connexion with such inquiry shall be defrayed by the Corporation out of moneys received by them in respect of the Poole Bridge. A.D. 1919.

33. A copy of any byelaws made under this Act signed and certified by the town clerk to be a true copy and to have been duly confirmed shall be evidence until the contrary is proved in all legal proceedings of the due making confirmation and existence of such byelaws without further or other proof. Evidence of byelaws.

34. The Corporation may lease for any term not exceeding five years the tolls or the Poole Bridge and the works appliances and conveniences connected therewith or with the working thereof to any company body or person upon such terms and conditions as they may think fit and the lessee during the continuance of the lease and subject to the provisions thereof shall have and may exercise the powers in regard to the Poole Bridge conferred upon the Corporation by this Act and shall be subject to the same provisions in respect thereto as the Corporation are subject to under this Act. Power to lease Poole Bridge.

35. If under the powers of the Act of 1834 and this Act the Corporation rebuild the Poole Bridge they may widen the said bridge and the approaches thereto to such an extent as they may think fit not exceeding fifty yards on each side of the centre line of the existing bridge and approaches. As to widening Poole Bridge if rebuilt.

36. For the protection of the Poole Harbour Commissioners (in this section referred to as "the commissioners") the following provisions shall notwithstanding anything contained in this Act or in the Acts incorporated herewith have effect unless otherwise agreed in writing (that is to say):— For protection of Poole Harbour Commissioners.

(1) The Corporation shall not less than two months before commencing to rebuild the Poole Bridge give notice in writing to the commissioners of their intention so to do:

(2) If the commissioners before the expiration of the said period of two months deliver to the Corporation notice in writing requiring the Corporation so to alter the said bridge as to increase the existing opening for the passage of vessels to a width of sixty feet at least the Corporation shall if they proceed with such rebuilding comply with such requirement:

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- (3) The said works shall be executed at the sole expense of the Corporation:
- (4) Nothing in this Act shall prejudice or interfere with the right of the commissioners to convert the area of the harbour above the bridge into a dock or otherwise to develop in such manner as they may think fit the said area in accordance with any scheme which may be authorised by Parliament:
- (5) The Corporation shall not exercise upon the lands at Sandbanks now vested in them and known as the Sandbanks Recreation Ground the powers conferred by the following sections of this Act of which the marginal notes are "Power to establish pleasure grounds and erect and let bathing huts &c." and "Power to construct bathing pools &c." except within such area or areas not exceeding in the whole four acres as shall from time to time be approved in writing by the commissioners and no erections whatsoever shall be made under the provisions of the said sections by the Corporation upon the said recreation ground within one hundred and fifty feet of the western boundary and one hundred and eighty feet of the eastern boundary thereof:
- (6) Any difference which shall arise between the commissioners and the Corporation under this section shall be determined by an arbitrator to be agreed upon between the commissioners and the Corporation or failing agreement to be appointed on the application of either party by the President of the Surveyors' Institution and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Tolls to
cease in
certain
events.

37. So soon as the moneys which the Corporation are authorised to borrow for the purposes (a) mentioned in the section of this Act of which the marginal note is "Power to borrow" shall have been repaid the Corporation may by resolution of the council determine that as from such date as shall be mentioned in such resolution the tolls authorised by the Act of 1834 shall cease to be leviable and as from the said date the right of the Corporation to demand and take such tolls shall cease.

PART III.

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IMPROVEMENT PROVISIONS.

38. The Corporation by agreement may purchase or take on lease all or any of the lands within the borough lying between high-water mark of ordinary tides and the red line shown on the map signed in triplicate by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred whereof one copy has been deposited in the Parliament Office of the House of Lords one copy in the Private Bill Office of the House of Commons and one copy in the office of the town clerk as the Corporation may think expedient and also such part or parts of the foreshore adjacent to any of such lands as the Corporation may think expedient.

Power to purchase lands adjacent to foreshore by agreement.

39.—(1) The Corporation may set apart any lands purchased or taken on lease under the provisions of the last preceding section for the purpose of pleasure grounds may erect and maintain thereon and upon lands at Sandbanks now vested in them and known as the Sandbanks Recreation Ground bathing and other huts and similar structures tents booths and stalls and may let the same or any of them together with such an amount of land adjacent to such a structure as the Corporation think fit in any case to any persons on such terms and conditions and for such periods as the Corporation may think fit.

Power to establish pleasure grounds and erect and let bathing huts &c.

(2) The provisions of section 81 (Extending definition of public place and street for certain purposes) of the Public Health Acts Amendment Act 1907 shall apply to any lands purchased or taken on lease by the Corporation under the provisions of the last preceding section until those lands are set apart by the Corporation for the purpose of pleasure grounds.

40. The Corporation upon any part of the lands referred to in the section of this Act the marginal note whereof is "Power to purchase lands adjacent to foreshore by agreement" purchased or taken on lease by them and upon the Sandbanks Recreation Ground and (with the consent of the owner of the foreshore) upon the foreshore may construct and maintain bathing pools baths shelters pavilions and conveniences and may take rents or charges for the use thereof or admission thereto.

Power to construct bathing pools &c.

41. For the protection and benefit of the owners lessees and occupiers for the time being of lands situate upon the promontory

For protection of Sand-

A.D. 1919. known as the Sandbanks the following provisions shall notwithstanding anything in this Act or incorporated therewith have effect
banks
owners &c. (that is to say):—

(1)—(a) The Corporation shall not exercise upon the lands at Sandbanks now vested in them and known as the Sandbanks Recreation Ground except within an area or areas not exceeding in the whole four acres in extent the powers conferred by subsection (1) of the section of this Act the marginal note whereof is “Power to establish pleasure grounds and erect and let bathing huts &c.” and by the section of this Act the marginal note whereof is “Power to construct bathing pools &c.”;

(b) No erection whatever shall be placed upon the Sandbanks Recreation Ground by the Corporation within one hundred and fifty feet of the western boundary or within one hundred and eighty feet of the eastern boundary of the said recreation ground;

(c) No erection placed under the powers of this Act upon the Sandbanks Recreation Ground shall exceed in height fourteen feet:

(2) The Corporation shall not exercise the powers conferred by the said subsection and section of this Act upon any part of the lands and foreshore purchased or taken on lease under the powers of the section of this Act the marginal note whereof is “Power to purchase land adjacent to foreshore by agreement” situate between the following points (viz.):—

(i) Between Poole Head and a point one hundred and eighty feet west of the eastern boundary of the Sandbanks Recreation Ground;

(ii) Between a point one hundred and fifty feet to the east of the western boundary of the Sandbanks Recreation Ground and the Haven Hotel;

(iii) Between the Sandbanks Pier and the Coast Guard Station;

(iv) Between the eastern and western extremities of the property known as Bay View now belonging or reputed to belong to W. Stephens:

Provided that nothing in this section shall prevent the erection by the Corporation of tents between any

of the said points respectively subject to the following conditions (viz.):— A.D. 1919.

(a) No tent shall be allowed to remain erected between sunset and sunrise;

(b) Not more than two tents shall be erected on any section of the said lands and foreshore measuring eighty feet in length along the line of high water;

(c) No tent shall occupy a greater space than eighty square feet.

42. The Corporation may place or authorise any person or persons to place seats or chairs on any of the lands referred to in the section of this Act the marginal note whereof is "Power to purchase lands adjacent to foreshore by agreement" purchased or taken on lease by the Corporation and in any recreation ground of the Corporation for the use of the public and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make byelaws for regulating the use of the chairs and for preventing injury or damage thereto.

Seats and chairs for public use.

43. The Corporation shall not exercise the powers of the sections of this Act the marginal notes whereof are—
 "Power to establish pleasure grounds and to erect and let bathing huts &c.";
 "Power to construct bathing pools &c."; and
 "Seats and chairs for public use";

For protection of Branksome Tower Hotel Company Limited.

upon any lands acquired by them under the powers of this Act to which any restrictive covenant in favour of the Branksome Tower Hotel Company Limited or their successors in title for the time being relates in contravention of such restrictive covenant.

44. The Corporation may appoint officers for securing the observance of this Part of this Act and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

Power to appoint officers.

45. Any moneys received by the Corporation in connexion with the execution of the purposes of this Part of this Act shall be carried to the credit of the district fund.

Application of moneys under this Part of Act.

A.D. 1919.

PART IV.

STREETS BUILDINGS SEWERS AND DRAINS.

Courts to be
flagged and
drained.

46.—(1) The owner or owners of premises the occupiers of which use in common any court or yard or passage (not being a highway repairable by the inhabitants at large) or any part of such court yard or passage shall if so required by the Corporation flag asphalt concrete or pave such court yard or passage or any part thereof and make a drain through or along the same and provide gullies and grids in suitable positions and at proper levels and keep such flagging asphaltting concreting or paving and drain gullies and grids in good repair.

(2) If such owner or owners shall for one month after notice in writing from the Corporation fail in any respect to comply with any requirements of the Corporation under the provisions of subsection (1) of this section he or they shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and the Corporation may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners.

Trees or
shrubs over-
hanging
streets and
footpaths.

47.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(3) Notice of the right to appeal shall be contained in or endorsed on every notice served by the Corporation under this section.

Power to
require tak-
ing down or

48.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use

or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may make an order upon the owner thereof requiring him within a reasonable time to be prescribed by the order either to put such building (in this section referred to as a "neglected structure") into a state of repair and good condition to the satisfaction of the Corporation or to take down the same and in addition to or in substitution for the foregoing order they may make an order upon such owner requiring him to fence the ground upon which the neglected structure is or was standing or any part thereof and in either case they may also make an order for the costs incurred up to the time of the hearing.

A.D. 1919.

repair of
dilapidated
buildings.

(2) If the order is not obeyed within the time thereby prescribed the Corporation at any time after the expiration of such time may enter upon the neglected structure or such ground as aforesaid and execute the order.

(3) Where the order provides for the taking down of a neglected structure or any part thereof the Corporation in executing the order may remove the materials to a convenient place and (unless the expenses of the Corporation under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation out of the proceeds of the sale and the surplus (if any) shall be paid by the Corporation on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said expenses the Corporation may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof in a summary manner but without prejudice to his right to recover the same from any lessee or other person liable for the expenses of repairs.

49.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building or of any works in the borough shall where practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such construction reconstruction or alteration such

Sanitary
conveni-
ences for
workmen
engaged on
buildings.

A.D. 1919. water or other closets and urinals in or in connexion with such building or works as may be sufficient for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Soil-pipes to be ventilated.

50.—(1) The soil-pipe of any watercloset within a house or building shall be properly ventilated by means of a pipe carried up therefrom or subject to the provisions of section 37 (Water or stack pipes not to be used as ventilating shafts) of the Public Health Acts Amendment Act 1907 by such other method as the Corporation shall direct.

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirement of the Corporation under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Provisions as to combined drainage for two or more houses.

51. The powers given by section 19 (Extension of 38 & 39 Vict. cap. 55 section 41) of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Improper construction or repair of watercloset or drain.

52.—(1) If a watercloset drain or soil-pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds.

(2) Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

53. The Corporation may by notice in writing require the owner or occupier of any house office warehouse shop stall or workshop to provide portable galvanised iron refuse bins and such bins shall be of such number size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings:

A.D. 1919.
Regulation
bins for
refuse &c.

Provided that this section shall not apply in respect of any premises where ashpits ash tubs or other receptacles for refuse are in use at the passing of this Act so long as the same are of suitable number material size and construction and in proper order and condition.

54. The owner of any dwelling-house or tenement which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house or tenement shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house or tenement was erected before the passing of this Act and such supply is not available.

Provisions
as to houses
without
water sup-
ply.

55. If any occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under this Part or Part V. of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding forty shillings and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Penalty on
occupiers
refusing
execution of
Act.

PART V.

INFECTIOUS DISEASE AND SANITARY MATTERS.

56.—(1) If the Corporation or the sanitary committee of the council acting on the advice of the medical officer with the

Power to
close Sun-
day schools

A.D. 1919.
to prevent
spread of
disease &c.

view of preventing the spread of infectious disease in the borough require the closing of any Sunday school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding twenty shillings.

To prevent
spread of
infectious
disease
amongst
children in
Sunday
schools &c.

57.—(1) No person being the parent or having the care or charge of a child who is or has been attending any school or any part thereof which has been closed by order of the Corporation or of the sanitary committee of the council with the view of preventing the spread of infectious disease shall permit such child to attend any Sunday school or place of public entertainment or assembly in the borough without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

Extended
meaning of
"infectious
disease" for
certain pur-
poses.

58. For the purposes of the foregoing provisions of this Part of this Act the expression "infectious disease" includes measles german measles whooping cough chicken pox and influenza.

Houses in-
fested with
vermin to be
cleansed.

59.—(1) If the medical officer or the inspector of nuisances has reasonable cause to believe that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer or inspector of nuisances it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion

A.D. 1919.
—

thereof specified in the notice and any articles therein and if so required in the notice to remove the wallpaper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable summarily as a civil debt from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

(6) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation or any boat lying in any river canal or other water within the borough and used for the like purpose.

60.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

Public notice to be given of provisions of this Part of Act.

A.D. 1919.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VI.

POLICE PROVISIONS.

Inspection
and certifi-
cation of
taximeter.

61. The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage plying for hire within the borough to be tested and inspected and they may also require any taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as the Corporation may prescribe and no such taximeter or other similar apparatus shall be used or continued in use unless the same be certified to register correctly. Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable upon conviction to a penalty not exceeding forty shillings.

PART VII.

SUPERANNUATION.

Definitions
in this Part
of Act.

62. In this Part of this Act and subject to the provisions thereof—

“Appointed day” means the day appointed by the Corporation for this Part of this Act to come into operation:

“Officer” or “servant” means an officer or servant who at the appointed day is or thereafter shall be in the permanent and exclusive service of the Corporation and who in each case is designated an officer or servant in an established capacity for the purposes of this Part of this Act by a resolution of the Corporation passed or to be passed and whether in receipt of salary or wages but not an officer or servant who shall be entitled to superannuation under the Police Act 1890 or any Act or Acts amending extending or replacing the provisions of that Act nor a person who shall be entitled to superannuation under the Poor Law Officers Superannuation Act 1896 nor a teacher

who shall be entitled to superannuation under the A.D. 1919.
School Teachers (Superannuation) Act 1918:

“Service” means service by an officer or servant as such officer or servant after the date when he shall have attained the age of twenty years and subsequently to the appointed day or to the date of his designation as aforesaid whichever in the particular case shall be the later:

“Prior service” means service whether with the Corporation or with any authority or body to whom the Vestries Acts 1818 to 1853 the Public Health Acts the Public Libraries Acts 1892 and 1893 the Baths and Wash-houses Acts 1846 to 1899 the Local Government Act 1888 the Local Government Act 1894 the Union Assessment Committee Acts the Municipal Corporations Act 1882 the Poor Law Officers Superannuation Act 1896 the Education Acts 1870 to 1918 the Technical Instruction Acts or one or more of such Acts applied or applies by an officer or servant after he shall have attained the age of twenty years and prior to the appointed day or the date of his designation as aforesaid whichever in the particular case shall be the later for such period or periods not exceeding in the whole ten years as the Corporation in any particular case may fix by resolution having regard to the report of the actuary hereinafter referred to:

“Fund” or “superannuation fund” means the superannuation fund established by the Corporation under the provisions of this Part of this Act.

63.—(1) Subject to the provisions of this Part of this Act every officer or servant who shall be a contributor to the superannuation fund and shall have—

- (a) completed ten years’ service or in the case of an officer or servant at the appointed day shall have completed ten years of service and of prior service with the Corporation and who shall have become incapable of discharging the duties of his office with efficiency by reason of permanent infirmity of mind or body (other than permanent incapacity due to an injury in respect of which he receives compensation under the Workmen’s Compensation Act 1906) or of old age; or

Title of
officers and
servants to
superannua-
tion allow-
ances.

A.D. 1919.

(b) attained the age of sixty years and have completed a period of service or of service and prior service of forty years; or

(c) attained the full age of sixty-five years;

shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life out of the superannuation fund a superannuation allowance according to the scale laid down in this Part of this Act.

(2) An officer or servant shall not be entitled to an allowance on the ground of old age unless he has completed the full age of sixty years.

(3) Where an officer or servant has attained the age of sixty-five years he shall cease to hold his office or employment and shall upon so ceasing to hold his office or employment receive the superannuation allowance to which he may be entitled under this Act Provided that the Corporation may by resolution and with the concurrence of such officer or servant extend his period of service for one year and so from time to time as they may deem expedient.

Cases in which prior service not to be reckoned.

64. No period of prior service shall be reckoned as such—

(a) In the case of any officer or servant who is unable to show to the satisfaction of the Corporation within a period of three months from the appointed day or the date of his designation (whichever shall be the later) that he has been in the permanent and exclusive employment of any body or authority service with whom may be included in the period of prior service; or

(b) In the case of any officer or servant who within three months from the appointed day or the date of his designation (whichever shall be the later) shall notify in writing to the Corporation his desire that service during the period of prior service shall not be reckoned.

Officers and servants to contribute.

65.—(1) Subject to the provisions of this Part of this Act—

Every officer or servant shall as from the appointed day or the date of his designation as aforesaid (whichever shall be the later) contribute annually to the super-

annuation fund a percentage amount of his salary or wages according to the following scale:— A.D. 1919.

In the case of an officer or servant under the age of twenty-five years not exceeding four per centum per annum on his salary or wages;

In the case of an officer or servant who has reached the age of twenty-five years but who is under thirty years of age not exceeding four and a half per centum per annum on his salary or wages;

In the case of an officer or servant who is thirty years of age or more five per centum per annum on his salary or wages;

Together with in the case of an officer or servant having prior service a further contribution at the rate of two shillings per centum on his salary or wages for each year of his period of such prior service.

(2) For the purposes of the foregoing provisions of this section the age of an officer or servant shall be his age at the date at which he first becomes a contributor to the superannuation fund.

(3) The amount of any such percentage as is hereinbefore mentioned in this section shall be from time to time deducted from the salary or wages payable to any such officer or servant.

66. The scale for superannuation allowances shall be as follows (that is to say):—

Scale of
superannua-
tion allow-
ances.

Such an annual allowance as shall be equal to one-sixtieth of the average annual amount of the salary or wages of the officer or servant entitled thereto during the five years ending on the day which immediately precedes the day on which he ceases to hold his office or employment multiplied by the number of complete years comprised in the service and the prior service of such officer or servant:

Provided that in no case shall any such allowance exceed forty-sixtieths of the said average annual amount of the salary or wages:

Provided also that where an officer or servant is unable by reason of physical or mental infirmity to perform the

A.D. 1919.

duties for which he was appointed but is employed at a reduced salary or wages he may if the Corporation allow contribute to the superannuation fund on the basis of the higher salary or wages and be entitled to the superannuation allowance on such higher salary or wages.

Officers over certain age not to be chargeable to fund.

67. Any officer or servant who at the appointed day or on the date of his designation as aforesaid whichever shall be the later shall have reached the age of fifty-five years shall if he be or become a contributor to the fund be entitled to the superannuation allowance to which his contributions would entitle him in accordance with the scale laid down in this Part of this Act but such superannuation allowance shall in lieu of being paid out of the superannuation fund be paid out of and be chargeable upon the fund or rate out of which the salary of such officer shall have been paid previously to the date when he shall become entitled to such allowance.

Case of subsequent appointment.

68. Where a person in receipt of a superannuation allowance under this Part of this Act is appointed to any office or employment by the Corporation or by any authority where his salary or wages shall be paid directly or indirectly out of any rate or rates or out of any public moneys such allowance shall cease to be paid so long as he continues to hold such office or employment if the salary or wages thereof are equal to or in excess of the amount of such allowance and if less then only so much of such allowance shall be paid so long as he holds such office or employment as will make up the deficiency.

Any such person on ceasing to hold such office or employment shall be entitled to revert to and to receive the full amount of his original superannuation allowance.

Return of contributions and power to grant gratuities.

69. An officer or servant who has not become entitled to a superannuation allowance and who by reason of a reduction of staff or abolition or alteration of office or employment resigns or loses his office or who ceases to hold his office or employment by reason of ill-health or bodily injury not occasioned by his own default or who being a female discontinues her service on marriage at any period of her service or employment or who after having contributed in respect of at least ten years' service to the superannuation fund voluntarily resigns his office or appointment otherwise than to avoid dismissal shall be entitled to receive out of the superannuation fund a sum equal to the

amount of all his contributions to such fund together with compound interest thereon at the rate of three pounds per centum per annum but if he subsequently be again appointed to be an officer or servant his service previous to his ceasing to hold office or employment as aforesaid shall not be reckoned as or be service for the purposes or within the meaning of this Part of this Act unless upon his fresh appointment he pays to the fund the amount so received.

A.D. 1919.

70.—(1) In the event of an officer or servant dying before becoming entitled to or receiving a superannuation allowance under the provisions of this Part of this Act the Corporation shall pay to his legal personal representatives out of the superannuation fund a sum equal to the whole of the contributions with compound interest thereon at the rate of three pounds per centum per annum made by such officer or servant to the superannuation fund under this Part of this Act.

Return in
case of
death.

(2) In the event of the death of an officer or servant after he has become entitled to superannuation allowance and before he shall have received the allowance to which he would have been entitled for the first year after he has so become entitled his legal personal representatives shall be entitled to the superannuation allowance for such year or the balance thereof after deducting any payments which may have been made to the officer or servant so dying.

71.—(1) The Corporation shall establish and administer a superannuation fund to which shall be carried and credited—

Superannu-
ation fund.

(a) A sum hereinafter called “the primary annual contribution” to be raised annually in or by the borough fund and other the several revenues of the Corporation and to bear such a proportion to the total salaries of the officers and servants contributing to the fund as hereinafter provided and such sum shall be paid out of the borough fund and other such revenues proportionately to the amount of salaries of the contributors chargeable thereto respectively;

(b) All percentage amounts of salary or wages deducted and other the sums contributed by the officers and servants as in this Part of this Act provided;

(c) All dividends or interest arising out of the investment of the superannuation fund or any part thereof; and

A.D. 1919.

(d) Such amount out of the borough fund and other the several revenues of the Corporation in proportion to the amount of the salaries of the contributors chargeable thereto as may be required to meet any deficiency of the superannuation fund.

(2) The following shall be charged upon the superannuation fund (namely) :—

(a) Superannuation allowances made in pursuance of this Act;

(b) Contributions or parts of contributions returned or paid in pursuance of this Part of this Act.

Actuarial investigation.

72. Within six months of the appointed day and at the expiration of every subsequent period of seven years the condition of the superannuation fund shall be submitted by the Corporation to an actuary being a member either of the Institute of Actuaries or of the Faculty of Actuaries in Scotland appointed by them who shall consider the same and shall make an actuarial valuation of the fund and on the basis of such valuation shall certify what proportion in his opinion the primary annual contribution shall bear to the total salaries of the officers and servants contributing to the fund so that such proportion shall at all times be as nearly constant and vary as little as may be and so that without further recourse to the borough fund or other the several revenues of the Corporation the superannuation fund as constituted under paragraphs (a) (b) and (c) of subsection (1) of the section of this Act of which the marginal note is "Superannuation fund" shall be solvent (having regard to existing and prospective liabilities) and for the then ensuing septennial period the primary annual contribution shall be the proportion so certified and shall be paid to the superannuation fund accordingly The Corporation shall furnish to the Local Government Board copies of the certificates of the actuary made to them under the provisions of this section.

Investment of surplus of fund.

73. At the end of each financial year the surplus of the annual income of the superannuation fund above the expenditure thereout shall be invested in statutory securities and the income thereof paid into that fund.

Provisions of this Part

74. A copy of the provisions of this Part of this Act shall be sent or delivered to each officer or servant in the service or

employment of the Corporation at the appointed day and any such officer or servant who shall thereafter within three months signify in writing to the Corporation that he does not desire to avail himself of the provisions of this Part of this Act shall not be required to make any contributions or to submit to any deduction from his salary or wages under this Part of this Act nor shall he be entitled to receive any superannuation allowance gratuity or other benefit under this Part of this Act.

A.D. 1919.

of Act not
to be com-
pulsory
upon exist-
ing officers.

75. This Part of this Act shall not come into operation until the superannuation fund shall have been registered under the Friendly Societies Act 1896 and the provisions of that Act (except the proviso to subsection (1) of section 8 and sections 28 and 41) so far as they are applicable and are not inconsistent with the provisions of this Part of this Act shall apply (a) as if the provisions of this Part of this Act were the rules of a society to which that Act applies (b) as if the Corporation were the trustees of such society (c) as if the superannuation fund were the funds of such society (d) as if the contributors to the fund were the members of such society and (e) as if the accounts of such fund as audited by the auditor of the Local Government Board were the annual return of the receipts and expenditure funds and effects required by section 27 of the said Act:

Superannu-
ation fund
to be regis-
tered under
Friendly
Societies
Act.

Provided that the powers of sections 70 71 73 78 and 79 of the said Act shall not be exercised without the consent of the Corporation and that the Corporation shall send to the registrar under the said Act a copy of any certificate and report made in pursuance of the section of this Act of which the marginal note is "Actuarial investigation."

76. This Part of this Act shall not come into operation unless and until the Corporation shall have obtained a report from an actuary (being a member either of the Institute of Actuaries or of the Faculty of Actuaries in Scotland) appointed by them as to what the amount of the primary annual contribution as by this Part of this Act provided should be and thereafter the Corporation may appoint a day for this Part of this Act to come into operation.

As to put-
ting into
force provi-
sions of this
Part of Act.

PART VIII.

FINANCIAL AND MISCELLANEOUS.

77.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the

Power to
borrow.

A.D. 1919. — purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column thereof (namely) :—

1.	2.	3.
Purpose.	Amount.	Period.
(a) For the purchase of the undertaking of the bridge company and for defraying the costs and expenses incident to such purchase and to the transfer of such undertaking to the Corporation (other than the costs of this Act) and for the payment of any other sum payable by the Corporation to the bridge company under the provisions of this Act.	The sum requisite	Forty years from the date or dates of borrowing.
(b) For paying the costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

(2)—(a) The Corporation may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Local Government Board and that period shall be the prescribed period for the purposes of the enactments incorporated herewith.

(3) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge—

As regards money borrowed for the purposes mentioned in subsection (1) of this section the borough fund and borough rate;

As regards money borrowed with the consent of the Local Government Board such revenue fund or rate as may be prescribed by that Board.

Power to
reborrow.

78.—(1) The Corporation shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid;
or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys. A.D. 1919.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 71 (Power to reborrow) of the Act of 1906 is hereby repealed.

79. The following sections of the Act of 1906 shall so far as they are applicable for the purpose extend and apply with the necessary modifications to and in relation to this Act and be incorporated with and form part of this Act (that is to say):—

Section 63 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);

Section 64 (Mode of raising money);

A.D. 1919.

- Section 65 (Provisions of Public Health Act 1875 as to mortgages to apply);
- Section 66 (Mode of payment off of money borrowed);
- Section 67 (Sinking fund) (provided that the said section shall be read and have effect as if the words "three pounds ten shillings per centum per annum or such other rate as the Local Government Board may approve" were inserted in subsection (1) (b) of that section instead of the words "three pounds per centum per annum");
- Sect on 68 (Protection of lender from necessity of inquiry);
- Section 69 (Corporation not to regard trusts);
- Section 70 (Appointment of receiver);
- Section 73 (Return to Local Government Board as to repayment of debt);
- Section 74 (Application of money borrowed);
- Section 80 (Inquiries by Local Government Board);
- Section 81 (Authentication and service of notices &c.);
- Section 82 (Confirmation of byelaws);
- Section 83 (Recovery of penalties);
- Section 86 (Recovery of demands).

Repeal of
section 85
of Act of
1906.

80. Section 85 (Penalties to be paid over to treasurer) of the Act of 1906 is hereby repealed.

Application
of revenue
of bridge
undertaking
and defi-
ciency of
receipts.

81.—(1) The Corporation shall apply all money received by them on account of revenue in respect of their bridge undertaking so soon as it shall have been acquired from the bridge company in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking:

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking:

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Corporation for the purposes of the undertaking:

Fourthly In extending and improving the Poole Bridge (if the Corporation think fit): A.D. 1919.

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the undertaking or for extending and improving any works for the purposes of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Corporation shall carry to the borough fund so much of any balance remaining in any year of the income of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the said undertaking shall be made good out of the borough rate made next after the deficiency is ascertained.

82. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the borough fund or the district fund as the Corporation may in their discretion having regard to the object of the expenditure deem just. Expenses of execution of Act,

83.—(1) The Corporation may if they think fit form a fund to be called the “accident fund” to provide for meeting claims Power to create accident fund.

A.D. 1919. — upon them under the common law the Employers Liability Act 1880 the Workmen's Compensation Act 1906 or any Act or Acts for the time being amending or extending those Acts or otherwise in respect of any accident occurring in the execution of any of their powers and such fund shall be formed by annually appropriating thereto such sums out of any of their revenues which are properly chargeable with such sums as they may from time to time deem expedient and such sums shall be invested at compound interest in or upon statutory securities and accumulated until the same shall amount to the sum of five thousand pounds. Provided that the Corporation may from time to time or at any time resort to that fund for any purpose mentioned in this section notwithstanding that the same shall not then have reached or shall have been reduced below the said sum of five thousand pounds and if the said fund be reduced at any time it may in manner provided by this section be restored to the said amount.

(2) If at any time it should be necessary for making any payment for any compensation to which this section relates to borrow money the Corporation may with the sanction of the Local Government Board borrow the necessary sum on the security of the revenues of the Corporation which are properly chargeable therewith.

Power to
grant gratu-
ities in cer-
tain cases.

84.—(1) The Corporation may if they think fit in cases not within the Workmen's Compensation Act 1906 or the School Teachers (Superannuation) Act 1918 grant a gratuity of any sum (not exceeding two years' pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age sickness or other infirmity or to the widow or family of any such officer or servant who may die in their service.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

(3) In and for the purposes of this section the expression "officers or servants" shall include any teacher who at the date of the passing of this Act is or shall thereafter be permanently and exclusively employed by the Corporation as the local education authority for the borough or permanently and exclusively

employed in any public elementary school in the borough (whether provided by the Corporation as the local education authority or not so provided) or permanently and exclusively employed in any school college or hostel provided by the Corporation as the local education authority for the purposes of Part II. of the Education Act 1902. A.D. 1919.

85. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction. Apportionment of expenses in case of joint owners.

86. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments authority &c.

87. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough. Informations by whom to be laid.

88. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom Powers of Act cumulative.

A.D. 1919. and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

As to breach of conditions of consent of Corporation.

89. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

As to appeal.

90. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Parts IV. V. and VI. of this Act or by any conviction or order by a court of summary jurisdiction under any provision of those Parts of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

Damages and charges to be settled by court.

91. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Application of section 265 of Public Health Act 1875.

92. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall with any necessary modifications extend and apply to the purposes of this Act as if the same were re-enacted herein.

Saving for indictments &c.

93. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal

or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. A.D. 1919.

94. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. Compensation how to be determined.

95. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

96. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). Crown rights.

97. Notwithstanding the provisions contained in the section of this Act of which the marginal note is "Crown rights" or in any public statute His Majesty and His lessees for their respective interest may work any minerals belonging to the Crown under or adjacent to the lands and works of the Corporation authorised to be taken or constructed by this Act but in the event of any such right being at any time intended to be exercised the provisions of the Railways Clauses Consolidation Act 1845 relating to notice and compensation shall apply when the workings reach a point the distance of which from the nearest of such lands would not if measured horizontally exceed one half the depth of such workings below the surface level of such lands. Crown minerals.

98. Subject to the unrepealed provisions of the Act of 1834 and to the provisions of this Act any of the works authorised by Works below high

A.D. 1919. water mark to be subject to approval of Board of Trade. the Act of 1834 or this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

Costs of Act.

99. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate and the district fund and general district rate in such proportions as the Corporation may by resolution determine or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the foregoing Act. A.D. 1919.

THE FIRST SCHEDULE.

SECTIONS OF THE ACT 4 WILL. IV. CAP. XLVI. SAVED FROM REPEAL.

V. And be it further enacted that for the purposes of this Act it shall be lawful for the said company and they are hereby authorised by themselves their deputies agents officers workmen servants or assistants to enter into and upon the lands of any person whomsoever and to examine survey and take levels of the same or any part thereof and to set out and appropriate such parts thereof as the said company are by this Act empowered to take or use for the purposes of this Act and to design and build or cause to be built and to erect construct maintain and keep in repair a good and substantial bridge with a draw or swivel bridge of stone iron brick wood or other materials with an approach thereto as hereinbefore is mentioned and to cut and level and embank and secure the banks thereof and cut remove scour take and carry away all trees roots of trees beds of gravel sand mud or any other impediment whatsoever and do and execute all and every other thing or things necessary or convenient for executing the works aforesaid Provided always that such bridge shall be so constructed that the flood of the water shall not be impeded thereby and so that the abutments shall not project before the fronts of the quay walls on the respective sides of the harbour nor be less than two hundred and ninety-three feet in distance from each other and so that when the said draw or swivel bridge shall be opened for the passage of vessels barges or boats there shall be a clear opening of the width of forty-two feet.

Power to
build the
bridge.

VII. And be it further enacted that when and so soon as the said bridge shall be built erected and constructed as aforesaid the said company shall and they are hereby authorised and required to appoint and to employ some person to open and remove the said draw or swivel bridge for the passage of vessels barges or boats requiring the same and in case the said company shall omit or neglect to appoint and employ such person as aforesaid or to continue the same or to appoint some other person in his place or stead or in the place or stead of any other person who may be so appointed immediately after any vacancy may occur they shall forfeit and pay for every such omission or neglect the sum of twenty pounds and in case any person so appointed and employed as aforesaid shall refuse or neglect for the space of fifteen minutes after application made to him for that purpose to open or remove such draw or swivel bridge and allow any vessel barge or boat requiring the same to pass the said bridge or shall do or cause to be done any act or thing whatsoever by means whereof the

Person to be
appointed to
open bridge
for vessels.

A.D. 1919. navigation of the said water shall be prejudiced or obstructed for such vessels barges or boats more than is unavoidable then and in either of such cases such person shall forfeit and pay the sum of forty shillings and the further sum of five shillings for every hour after the first hour that such refusal or neglect shall continue.

Committee of management to appoint officers.

LX. And be it further enacted that it shall be lawful for the said company and they are hereby authorised and empowered from time to time to nominate and appoint a treasurer engineer architect surveyor clerk collector or receiver of the tolls herein authorised to be demanded and taken and such other officers as to the said committee of management shall seem proper and from time to time to remove any such treasurer engineer architect surveyor clerk collector receiver or other officers and to nominate and appoint another person in his room and stead taking such security from every such treasurer collector receiver or other officer for the due execution of their respective offices and to grant them respectively such salary and compensation as the said committee of management shall think proper.

Committee may remove collectors and appoint temporary ones

LXII. And be it further enacted that when and so often as any collector or receiver of the tolls shall die or neglect or refuse to perform or become incapable of performing his duty or shall abscond or absent himself it shall be lawful for any three or more of the said committee of management although not assembled at any meeting of the said committee to be appointed by virtue of this Act to discharge such collector or receiver so neglecting or refusing to perform or becoming incapable of performing his duty or absconding or absenting himself and to nominate and appoint some other fit and proper person to be a collector or receiver of the said tolls until the then next meeting of the said committee instead of such collector or receiver who shall so die or be discharged and such person so nominated and appointed shall be vested with the like power and authority and be answerable and accountable in like manner in all respects as the collector or receiver who shall so die or be discharged would have been and if any collector or receiver of the said tolls who shall be discharged from this office by virtue of this Act or the wife or widow or any of the children family or other representatives of any collector or receiver who shall die or be discharged or any other person who may have the possession of any toll house or building or any appurtenances thereto to be erected set up or used by virtue of this Act shall neglect or refuse to deliver up the possession thereof for the space of two days next after demand thereof made by notice in writing signed by the clerk of the said company for that purpose given to such collector or receiver or left at such toll house buildings or premises then and in every of the said cases it shall be lawful for any justice of the peace by warrant under his hand and seal to order any constable or other peace officer with such assistance as may be necessary to enter such toll house or other buildings or premises in the daytime and to remove any person who shall be found therein together

with his goods out of the same and put the said committee of management or such new appointed collector or receiver as aforesaid into the possession thereof. A.D. 1919.

LXVIII. And be it further enacted that the said company shall and they are hereby authorised and empowered to order and cause to be built and erected at or near the said bridge a crane machine or engine proper for the weighing of waggons carts and carriages conveying goods or merchandise or any matter or thing whatsoever and to order and direct all such waggons carts and carriages passing or about to pass over the said bridge to be weighed thereat accordingly and if the owner or driver of any such waggon cart or other carriage shall refuse to allow the same to be weighed or shall resist any person having the charge of the same crane machine or engine in weighing the same every such owner or driver shall forfeit and pay any sum not exceeding five pounds. Power to erect weighing machines.

LXIX. And whereas the said bridge being intended to be a draw or swivel bridge it is expedient to limit the weight to be carried over the same in any waggon cart or other carriage be it therefore further enacted that no waggon cart or other carriage which together with the loading thereof shall be of a greater weight than three tons shall be permitted to pass over the said bridge and if the owner or driver of any waggon cart or other carriage which together with the loading thereof shall be of a greater weight than three tons shall permit the same to pass over the said bridge he shall for every such offence forfeit and pay the sum of ten pounds. Limiting the weight to be carried over the bridge.

LXXXI. And be it further enacted that if any person shall wilfully or negligently injure destroy or otherwise damage any part of the said bridge or the approach thereto or shall wilfully obstruct the passage thereof or if any driver of any waggon or other carriage shall wilfully or carelessly break or damage any of the posts woodwork iron copper or stone which may be erected for the security of the said bridge or the approach thereto or if any person shall make or assist in making any bonfire or shall incautiously let off or discharge any gun pistol or blunderbuss or other fire-arms or shall wantonly let off any serpent or rocket or throw any cracker squib or other fireworks or play at football or any other game to the annoyance of any passenger or if any person shall scrape off any mud soil or other matter or thing which shall be or lie upon any part of the said bridge or the approach thereto with any instrument so as to damage the said bridge or the approach thereto or any part thereof or if any person shall leave any waggon wain cart or carriage or any plough harrow or other implement of husbandry or other impediment or obstruction without some reasonable cause to be allowed by the justice before whom the person so offending shall be summoned or conveyed or except with regard to such waggon wain cart or other carriage during such reasonable time as the same shall be loading or unloading and standing as near the side of the said bridge or the approach thereto as conveniently may be in upon or on the sides of the said bridge or the approach thereto either with or without For preventing nuisances on the bridge or approach.

A.D. 1919. any horse or beast harnessed or yoked thereto or shall lay any timber wood or bushes or any stones bricks hay straw lime dung manure soil rubbish or other impediment obstruction or annoyance whatsoever upon any part of the said bridge or the approach thereto or on the side thereof to the prejudice thereof or to the annoyance of any person travelling thereon every person so offending shall for every such offence forfeit and pay any sum not exceeding five pounds.

Power to Company to repair or rebuild the bridge when necessary and in the meantime to provide a ferry boat.

LXXXIII. And be it further enacted that in case the said bridge or the approach thereto shall at any time be out of repair become impassable or unsafe for travellers or carriages the said company shall and they are hereby empowered and required to cause the same to be forthwith rebuilt, or repaired and made safe and commodious for the passage of travellers carts and carriages and in the meantime until the said bridge shall be rebuilt or repaired and made safe and commodious it shall be lawful for the said company and they are hereby empowered during all such time as the said bridge shall be impassable or unsafe as aforesaid to provide and maintain a proper and convenient ferry boat with roads and approaches thereto for the passage of travellers cattle and carriages over the said water as near to the said bridge as conveniently may be and it shall be lawful for such persons as the said company shall appoint for that purpose to demand collect and receive for the passage of such travellers cattle and carriages in or over the said ferry before they shall be permitted to pass the like tolls as are hereby authorised to be taken for passing over the said bridge and to apply the same in manner by this Act directed anything hereinbefore contained to the contrary notwithstanding.

Bridge to be public but not to be deemed a county bridge.

LXXXIV. And be it further enacted that after the said bridge with the approach thereto shall have been completed the same shall be opened to the public and all persons with or without horses cattle or carriages shall (subject to the provisions herein contained as to the weight to be carried over the said bridge) have free liberty upon payment of the tolls by this Act granted to pass over the same without any interruption whatsoever but such bridge shall not be deemed a county bridge so as to subject the said town and county of the town of Poole and county of Dorset or either of them or any parish therein to repair the same or the approach thereto.

For securing transient offenders.

XCII. And whereas persons guilty of offences against this Act may be transient persons unknown to the collector surveyor or other officers under this Act be it therefore further enacted that it shall be lawful for any collector surveyor or any other officer respectively to seize and detain any such unknown person guilty of any offence against this Act and forthwith to convey him before some justice of the peace for the county or place wherein any such offence shall be committed (such justice not being interested in such undertaking) without any warrant or other authority than this Act for so doing.

THE SECOND SCHEDULE. A.D. 1919.

TOLLS WHICH MAY BE CHARGED FOR THE USE OF THE
POOLE BRIDGE.

For every vehicle drawn or fitted to be drawn by two or more horses or other animals—	
For each animal drawing the same	3d.
For every vehicle drawn or fitted to be drawn by one horse or other animal	3d.
For every vehicle not drawn by any horse or other animal but propelled or moved by machinery	6d.
For every handcart handtruck wheelbarrow or other similar vehicle	1d.
For every bathchair perambulator mailcart or other similar vehicle	1d.
For every bicycle or tricycle propelled by mechanical power (including a bicycle or tricycle with an auto-wheel whether drawn up or on the ground)	3d.
For every other bicycle or tricycle	1d.
For every sidecar or trailer to any bicycle or tricycle	1d.
For every animal laden or unladen and not drawing other than those mentioned below	1d.
For every bull ox cow or other bullock	$\frac{1}{2}$ d.
For every calf pig sheep lamb or other beast	$\frac{1}{4}$ d.
For every foot passenger	$\frac{1}{2}$ d.

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